RESTORATIVE JUSTICE IN OAKLAND SCHOOLS IMPLEMENTATION AND IMPACTS 2014

AN EFFECTIVE STRATEGY TO REDUCE DISPROPORTIONATE DISCIPLINE, SUSPENSIONS AND IMPROVE ACADEMIC OUTCOMES.

EXECUTIVE SUMMARY

Need for Alternatives to Zero Tolerance Disciplinary Policies

Schools around the country continue to unfairly use zero-tolerance disciplinary policies and practices to suspend or expel students for minor behavioral infractions, such as verbal disrespect, fighting, or truancy. Compelling evidence suggests that zero tolerance disciplinary policies and teacher/principal practices used for decades do not work to improve student behavior, school safety or academic achievement. Students of color, particularly African American students, have been most disproportionately impacted by these practices, with highest rates of suspensions, expulsions and subsequent delinquent pathways via school-to-prison pipeline. Fair, just and effective alternatives to suspensions and expulsions are needed to support students of color to learn, achieve and grow to their fullest potential.

School-based Restorative Practices at Oakland Unified School District

School-based Restorative Justice Programs, which are based on indigenous means of community building in schools, are increasingly being recognized as a promising alternative to suspensions that are effective in repairing harm or conflict, reducing student risk behaviors, violence and building community. Oakland Unified School District (OUSD) in partnership has long recognized the need to address disproportionate minority contact and plug the school-to-prison pipeline, by employing several innovative strategies. OUSD, one of the largest district in California serving over 45,000 students, one third African American and over 70% low-income students of low-income students, voluntarily went into agreement with Office of Civil Rights in 2012 to reduce disproportionality for African American students, and close the discipline gap between Black and White students.

Restorative Justice in Oakland Schools

In 2005, OUSD started the Whole School Restorative Justice program, and more recently, the Peer RJ program, aimed to reduce harm, build community, and ensure successful re-integration of marginalized students coming from the juvenile justice system.

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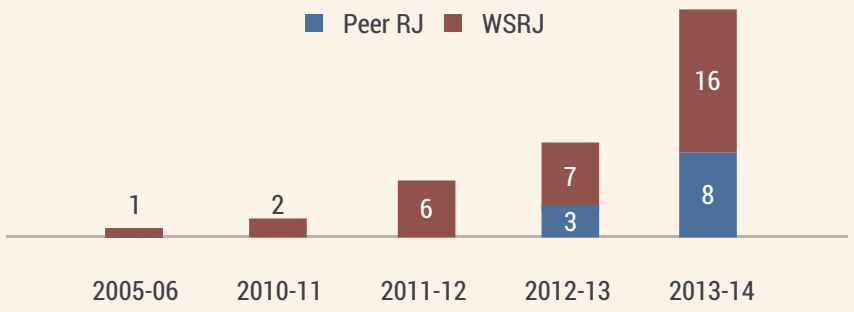
*Most outcome data is for 2011-2014; preliminary multi-level model analysis. See RJ Full Report for more details.

RJ IMPLEMENTATION IN OAKLAND SCHOOLS

- Of 24 RJ schools, almost half have high implementation, 2/2 elementary schools, 6/11 middle and 3/9 high schools.

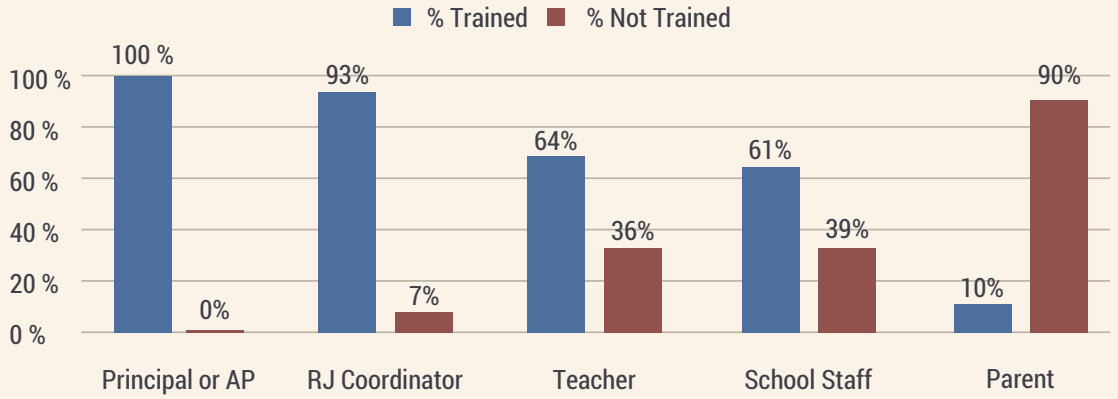
Growth in Number of RJ School Sites in past 10 Years, OUSD, 2005 - 2014



- 90% of staff practicing RJ for less than 3 years (38% < 1 year, and 52% 1-3 years) (n=330 implementation survey)
- Over 78% of staff reported that they are successfully implementing what they learned in RJ training entirely or a lot and 21% said some.
- 57% staff currently trained, 43% not. Almost 40% reported they have not had adequate training or coaching to meet their needs.

> *"Training without coaching is ineffective."* - *Program Manager*
>
> *"Training should begin in elementary school so the culture among the students can be changed BEFORE they get to middle school."* - *Teacher*

% Trained by Staff Type, N=318, 7/2014



Source: OUSD-RJ Implementation Survey 2014
(target=400 ->actual=6,320, a difference of 5,800).

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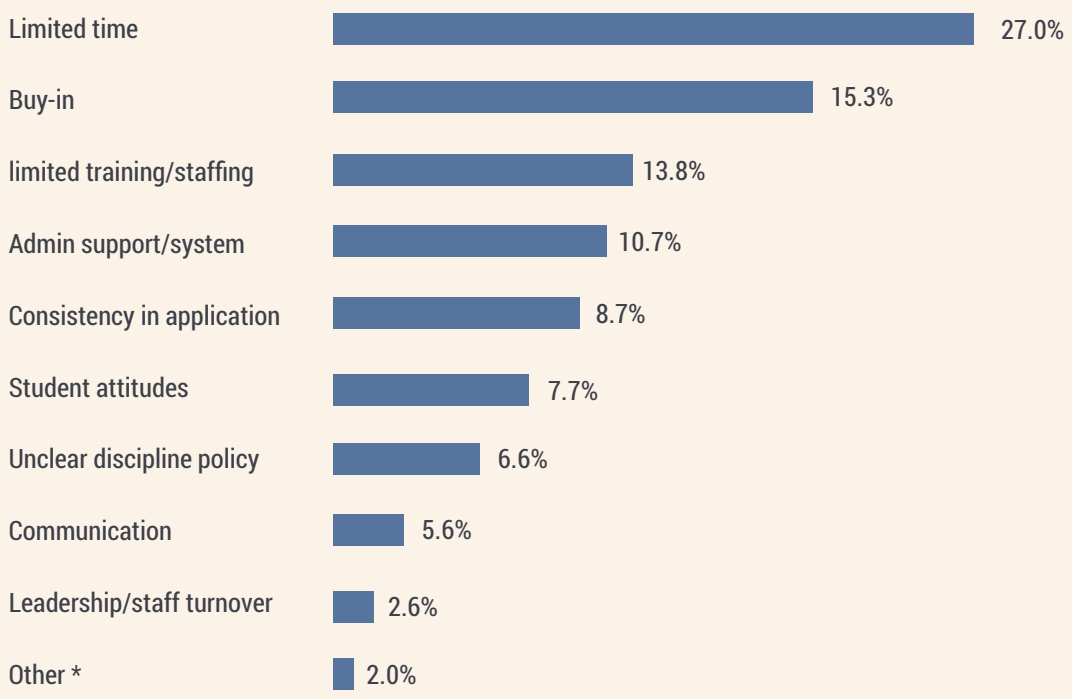
PARENTS WERE THE LEAST LIKELY TO HAVE BEEN TRAINED (10%), AND WERE THE LEAST FAMILIAR WITH RESTORATIVE PRACTICES.

- Over half of the staff said that it is very easy or easy to conduct restorative practices.
- About 80% of the staff surveyed that their school should continue using RJ practices.
- Major challenges for school-wide RJ implementation included: limited time, trainings, buy-in, information sharing, unclear discipline policies for serious offenses, student attitudes or misuse of RJ, and inconsistency in application.

Major Challenges to successful RJ implementation at school-level, N=196



Source: RJ Implementation Survey 2014

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IMPACT OF RJ PARTICIPATION (2011-2014)*

> *"...Why can't we make it a practice across all schools. It works!"* - RJ Coordinator

Reduced office referrals for disruptive behaviors

- 47% staff that RJ has helped reduce referrals for all students, 53% for African American students.
- 88% of teachers reported RJ was very or somewhat helpful in managing difficult student behaviors in the classroom.

> *"[I like] Having a place where I can send students who are in conflict rather than sending them to the office where they would be sent home."* - Teacher

Reduced Suspensions

- 60% staff believe that RJ has helped reduce suspensions at their school.
- Suspensions for African American students for disruption/willful defiance decreased by 40% or 420 in one year; and rate by 37% from 7.4 to 4.7.
- The Black/White discipline gap went down from 25 in 2011-12 to 19 in 2012-13. Significant progress has been made to close the discipline gap in the past 3 years, suggesting that OUSD is on the right track – yet there is still a long ways to go to close the discipline gap between African American and White students.
- The percent of WSRJ student participants who were suspended over time dropped by half, from 34% in 2011-12 to 14% in years 2 and 3. The rate of change is more significant ($p<0.05$) than district-wide or for non-RJ students.

Resolved Conflicts/ Harm

- Over 63% of staff surveyed believed that RJ has improved the way students resolved conflicts with adults and with other students.

  Resolved conflicts/ harms successfully in over 76% of the 500 harm circles.

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> *"It has helped students become leaders and resolve conflict on their own." – Teacher*
> *-Gonzalez, 2012, Keeping Kids in School, Page 2[82].*

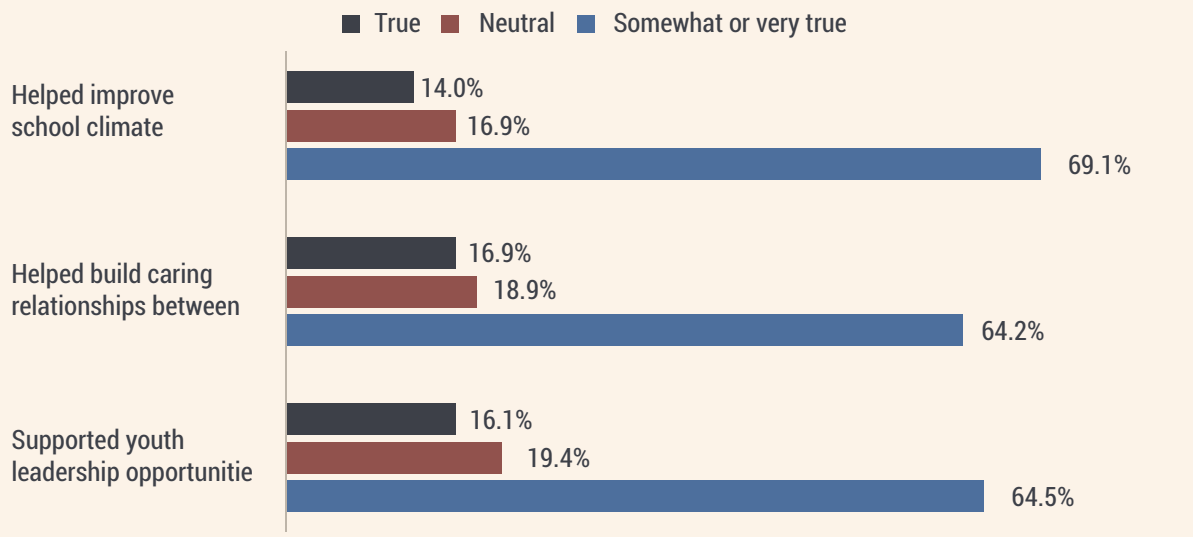
Built Developmental Assets

- Students in restorative circles report enhanced ability to understand peers, manage emotions, greater empathy, improve home environment, and maintain positive relationships with peers. They are learning life skills, and sustainable conflict management skills.

Improved School Climate and Caring Relationships

- Almost 70% of staff reported that restorative practices are helping to improve school climate at their school.

Perceived Impact of Restorative Practices on School Climate, N=307



Source: RJImplementation Survey 2014

> *"It has created a more sincere relationship between me and some of my harder to manage students."*
>
> *–Teacher*

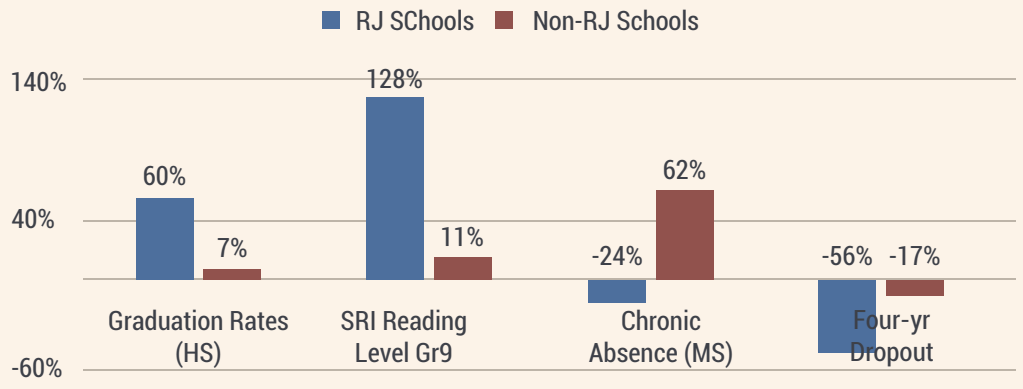
> *"I believe that the foundation has been laid. Continuation with improvement from staff and students will continue to result in positive changes in school climate. Follow through and support are essential from administration."*
>
> *–Teacher*

Improved School-level Academic Outcomes

> *RJ high implementation significantly associated with reduced suspensions and increased graduation rates over time, even after controlling for confounders, using matched treatment-control group (unbiased preliminary).*

*Most outcome data is for 2011-2014; preliminary multi-level model analysis. See RJ Full Report for more details.

School-level Academic Outcomes in RJ vs. Non-RJ Schools over time, 2011-2014



source: Aeries

- The greatest cumulative change in chronic absenteeism is for middle schools with a RJ program, a drop by 24%, compared to an estimated increase in non-RJ middle schools of 62%.
- Reading levels as measured by SRI in grade 9 doubled in RJ high schools from an average of 14% to 33%, an increase of 128%, compared to 11% in non-RJ high schools in past 3 years.
- From 2010-2013, RJ high schools experienced a 56% decline in dropout rates in comparison to 17% for non-RJ high schools.
- Four-year graduation rates in RJ schools increased significantly more than Non-RJ schools (public schools only) in the past 3 years post-RJ intervention-- a cumulative increase of 60% for RJ schools, compared to 7% for Non-RJ schools.

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CONCLUSION

OUSD has done a remarkable job of implementing restorative practices in the past 10 years, as an alternative strategy to suspending students for minor behavioral infractions. Particularly in the last 3 years, there has been substantial growth in number of schools implementing RJ, staffing, capacity, and subsequent effect over time on reducing suspensions particularly for African American students, closing the discipline gap, and improving academic outcomes (reading levels, dropout rates, graduation rates) for schools and students participating in RJ vs not.

PRACTICE RECOMMENDATIONS

We hope the information in the report is used for program improvement, expansion and sustainability. We offer the following recommendations based on the evidence to date.

1. Build a greater infrastructure at the district and school levels that would support learning and networking opportunities where teachers can share best practices, outcomes, and resources across and within schools, including the following
    - Develop more structure, protocols and documentation of best practices.
    - Develop and monitor use of a clear discipline policy and protocols at the schools.
    - Develop school-level implementation plans that include communication and information sharing.
    - Secure needed resources to ensure sustainability of RJ.

> ***"I could see district playing that role, to identify where that talent is, and take steps to help leverage those skills to develop structures and protocols."*** *- RJ Coordinator*

2. Expand trainings and coaching to include additional teachers, younger students, and parents, particularly for Tier 1 community building in the classroom.

*Most outcome data is for 2011-2014; preliminary multi-level model analysis. See RJ Full Report for more details.

3. Engage more parents; at the very least, familiarize them with the RJ program and tell them how they can participate in or support the program.

> *"Only if there is more training for teachers on how to use these practices successfully, and also for parents." – Teacher*

4. Capitalize on the enormous potential the students have for change. Invest in youth; continue to train them as leaders; systematically allow their voices to be heard so that they may influence policy and programmatic decisions.

5. Expand into additional elementary schools, reaching students earlier developmentally to build caring relationships and positive behaviors.

6. Change reputation of RJ program from getting out of classroom or as an alternative to suspension to a more meaningful opportunity for engagement and achievement.

7. Situate RJ in Schools in the larger context of social justice and equity by showing how restorative processes, such as community-building circles, can be used to address other issues of inequity, including violence, poverty, housing, economic development, environmental protection, and access to healthy and affordable food.

> *"I love RJ. It is equity focused and is truly a practice that promotes positive learning environments and community building in classrooms."*
>
> *- Teacher*

8. Emphasize RJ as a philosophy and set of values that underlies and complements all behavioral programs and practices.

RESEARCH RECOMMENDATIONS

1. Capitalize on the existing matched student- and school-level data to further conduct advanced impact analyses.

2. Further explore the impact of RJ participation on select school climate outcomes as well as developmental assets (e.g., empathy), guided by theoretical, practical and empirical evidence to date, using California Healthy Kids and School Climate Surveys.

3. Use more rigorous evaluation design, such as quasi-experimental study to examine impact of restorative justice tiered program and specific practices on specific student outcomes.

4. Streamline the data tracking system to include both WSRJ and Peer RJ that measures student-level participation at tiered levels, particularly being cognizant of parents' involvement, intermediate outcomes such as empathy, leadership skills, and classroom observations.

5. Conduct case studies to further examine what's working or not in specific schools, for specific groups of students and situations, e.g., how teacher and principal disciplinary attitudes and practices may vary or be racially biased for African American students vs. White students.

6. In light of the school-to-prison pipeline, it is critical to have more evidence of how well RJ tier 3 practices are working to ensure safe and successful re-integration of JJC offenders.

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>
> – Teacher

For more information about the full report or the Whole School or Peer RJ program, please visit: www.ousd.k.12.ca.us/restorativejustice or contact
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